

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-09

TZ SSE Buyer, LLC, Complainant v. COSCO Shipping Lines Co., LTD, Respondent

RENEWED COMPLAINANTS' MOTION FOR CONFIDENTIAL TREATMENT

Complainant TZ SSE Buyer, LLC (“Complainant”), pursuant to 46 C.F.R. §§ 502.214, 502.69, 502.71, and 502.5(b), and in accordance with the February 28, 2024 Initial Order and the July 8, 2025 Order Following Status Conference in this proceeding, respectfully renews its motion for confidential treatment of certain exhibits included in the Appendix to its Opening Brief and Proposed Findings of Fact (“Appendix”).

Pursuant to 46 C.F.R. § 502.5(b)(5)(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. § 502.5(b).

Here, Complainant does not seek confidential treatment for its Opening Brief, Proposed Findings of Fact, or the exhibits referenced in its Appendix. However, these submissions contain materials that Respondent, COSCO Shipping Lines Co. Ltd. (“Respondent”), has designated as confidential pursuant to the Protective Order entered in this proceeding.

On June 18, 2025, Complainant timely filed both public and confidential versions of its Opening Brief, Proposed Findings of Fact, and Appendix, along with a Motion for Confidential Treatment. Some of the exhibits in Complainant’s Appendix were marked and redacted at the request of Respondent. On June 20, 2025, Complainant refiled the public and confidential versions of its Opening Brief, Proposed Findings of Fact, and Appendix exhibits, along with a renewed

Motion for Confidential Treatment and a Motion to Withdraw the previously filed versions of these documents. This refileing was prompted by Respondent's new confidentiality designations made on that date, which required additional markings and redactions to the confidential and public versions of Complainant's Opening Brief and Proposed Findings of Fact.

During a status conference held on July 8, 2025, the Presiding Officer expressed concern that some of the redactions in Complainant's Opening Brief, Proposed Findings of Fact, and the exhibits in the Appendix appeared excessive or unsupported, and directed Complainant to submit revised redactions. On July 29, 2025, Respondent provided revised and more targeted markings and redactions to specific content within the exhibits in Complainant's Appendix, along with an updated Confidential Documents Table identifying each document it considers confidential and the basis for each designation. Respondent also confirmed that no content in Complainant's Opening Brief or Proposed Findings of Fact requires redaction. The Confidential Documents Table provided by Respondent is attached hereto as **Exhibit A**.

For the foregoing reasons, should the Presiding Officer concur with Respondent's confidentiality designations, Complainant respectfully requests that the marked and redacted information in the public and confidential versions of the Appendix exhibits—as identified and designated by Respondent—be afforded confidential treatment, and that the corresponding filings of Complainant's Opening Brief, Proposed Findings of Fact, and Appendix be accepted as compliant with the Presiding Officer's July 8, 2025 Order. To reiterate, Complainant does not seek confidential treatment for its Opening Brief or Proposed Findings of Fact, consistent with Respondent's position that no redactions are required for those documents.

Dated: July 30, 2025

Respectfully jointly submitted,

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CERTIFICATE OF SERVICE

I certify that on July 30, 2025, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502.

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EXHIBIT A

C'S OPENING BRIEF EXHIBITS	DESCRIPTION	CONFIDENTIALITY DESCRIPTION
1. EXHIBIT 1 CX_000032-CX-000153	122 PAGES OF COSCO INVOICES	Confidential/AEO: 3 rd party information and banking information associated with named 3 rd parties
2. EXHIBIT 2 CX_001357-CX001385	TAKASE DEPOSITION TRANSCRIPT	Not confidential.
3. EXHIBIT 4 CX_001398-CX_001665	269 PAGES OF COSCO MBLs	Confidential: "Shipper" section of select invoices are confidential as they contain 3rd party information.
4. EXHIBIT 12 CX_002273-CX_002276	R'S EXCEL SPREADSHEET	Confidential: "Notes section of spreadsheet contains commercially sensitive internal COSCO notes.
5. EXHIBIT 13 CX_002278	R'S EXCEL WAIVED SHIPMENT SPREADSHEET	Confidential: Various columns contain commercially sensitive internal COSCO notes.
6. EXHIBIT 14 CX_002280-CX_002299	SUPPORTING DOCS FOR COSCO WAIVED SHIPMENT SPREADSHEET & 3 COSCO INV'S + COSCO PERDIEM EMAIL CORRESPONDENCE	Confidential: Third party information (3x invoices) & internal COSCO communications.
7. EXHIBIT 15 CX_002301-CX_002329	COSCO FREE TIME/DETENTION TARIFF + FREE TIME DEMURRAGE TARIFF	Not confidential.

8. EXHIBIT 16 CX_002338-CX_002339	RESPONDENT'S SUPPLEMENTAL RESPONSES TO DISCOVERY REQUESTS	Confidential: Responses to Respondent's Supplemental Responses to Discovery Requests #10 and #11 contain commercially sensitive information.
9. EXHIBIT 18 CX_002411-CX_002424	DEPO TRANSCRIPT OF PAUL KENT	Not confidential.
10. EXHIBIT 19 CX_002426-CX_002432	COSCO FRESHDESK TICKETS	Confidential: Contains commercially sensitive information (internal COSCO personnel) and unrelated shipments.